

26STCV12590 26STCV12590

County: los-angeles

Division: Civil Law and Motion

Department: 730

Hearing date: 2026-06-30

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Case Number: 26STCV12590 Hearing Date: June 30, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

ASHKAN

FATHI,

Petitioner,

vs.

MOBILITAS

INSURANCE COMPANY AND BLUE STAR INSURANCE COMPANY (AKA BLUE STAR CLAIMS, LLC)

Respondents.

Case No.:

26STCV12590

Hearing

Date:

June 30,

2026

[TENTATIVE]

ORDER RE: MOTION TO COMPEL A SINGLE
JOINT ARBITRATION PROCEEDING

I. BACKGROUND

Petitioner Ashkan Fathi ("Petitioner") suffered injuries in a motor vehicle accident while working as a Lyft driver. Respondents Mobilias Insurance Company ("Mobilias") and Blue Star Insurance Company (collectively, "Respondents") are insurance carriers providing coverage to Petitioner while he provided rideshare driving services. Petitioner filed his petition with the Court on April 20, 2026, seeking to open an unlimited civil action to obtain a case number and establish jurisdiction so that Petitioner could file a motion to compel arbitration.

On April 23, 2026, Petitioner filed an amendment to complaint, after discovering the true name of Blue Star Insurance Company to be United States Fire Insurance Company ("U.S. Fire").

On May 7, 2026, Petitioner filed the instant motion to compel a single joint arbitration proceeding. On June 17, 2026, Mobilias filed its opposition. On June 22, 2026, Petitioner filed a reply.

II. JUDICIAL

NOTICE

Petitioner requests judicial notice of the following court records:

1.

Phillips Minute Order:

Certified Minute Order dated May 5, 2026, in Lashane Phillips v. Mobilias Insurance Company and Blue Star Insurance Company, Los Angeles Superior Court Case No. 26STCV09590 (Dept. 2, Hon. Kristin S. Escalante), granting motion to consolidate Mobilias UIM/UM and Blue Star OAI arbitrations under Code of Civil Procedure section 1281.3 and identifying common factual issues including reasonableness and necessity of treatment and bills.

2.

Ascencio Minute Order:

Dated May 19, 2026, in Juan Ascencio v. Mobilias Insurance Company and Blue Star Insurance Company, Los Angeles Superior Court Case No. 26STCV09232 (Dept. 407, Hon. Brock T. Hammond), granting motion to consolidate, rejecting U.S. Fire's contention that UIM/UM arbitration cannot be consolidated with contractual OAI arbitration, and confirming a single arbitrator can address offsets.

3.

Zabala Minute Order:

Dated May 19, 2026, in Julio Zabala v. Mobilias Insurance Company, et al., Los Angeles Superior Court Case No. 26STCV09128 (Dept. 529, Hon. Virginia Keeny), granting consolidation, denying stay, recognizing Blue Star is not workers' compensation, and that section 11580.2(f) had not been triggered.

4.

Yeghiazaryan Minute Order:

Dated June 4, 2026, in Karen Yeghiazaryan v. Mobilias Insurance Company and Blue Star Insurance Company, Los Angeles Superior Court Case No. 26STCV09288 (Dept. 310, Hon. Kevin C. Brazile), granting a motion to consolidate arbitrations pursuant to Code of Civil Procedure section 1281.3, finding that the UIM and Occupational Accident Insurance claims arose from the same motor vehicle accident, involved common factual and legal issues concerning causation, damages, medical expenses, wage loss, and offsets, and that separate proceedings created a risk of inconsistent rulings.

5.

Chimato Minute Order:

Dated June 16, 2026, in Vincent Chimato v. Mobilias Insurance Company, et al., Los Angeles Superior Court Case No. 26STCV08913 (Dept. 512, Hon. Karine Mkrtchyan), the court granted consolidation between Petitioner, Mobilias, and U.S. Fire's claims and compelled the parties to a single-joint arbitration.

The Court may take judicial notice of "[r]ecords of (1) any court of this state or (2) any court of record of the United States or of any state of the United States." (Evid. Code, § 452, subd. (d).) Additionally, the Court "shall take judicial notice of any matter specified in Section 452 if a party requests it and: (a) Gives each adverse party sufficient notice of

the request, through the pleadings or otherwise, to enable such adverse party to prepare to meet the request; and (b) Furnishes the court with sufficient information to enable it to take judicial notice of the matter." (Evid. Code, § 453.)

The Court grants Petitioner's requests for judicial notice.

III. LEGAL STANDARD

Insurance Code section 11580.2[1] governs the provision of uninsured and underinsured motorist arbitration. (See *Pilimai v. Farmers Ins. Exchange Co.* (2006) 39 Cal.4th 133, 140.) Section 11580.2 mandates arbitration of uninsured and underinsured motorist claim disputes between insurers and insureds regarding liability, damages, or both: 22

The policy or an endorsement added thereto shall provide that the determination as to whether the insured shall be legally entitled to recover damages, and if so entitled, the amount thereof, shall be made by agreement between the insured and the insurer or, in the event of disagreement, by arbitration.

(§ 11580.2, subd. (f).)

Section 11580.2, subdivision (f)(1) states:

2 Whenever in Title 4 (commencing with Section 2016.010) of Part 4 of the Code of Civil Procedure, reference is made to the court in which the action is pending, or provision is made for application to the court or obtaining leave of court or approval by the court, the court that shall have jurisdiction for the purposes of this section shall be the superior court of the State of California, in and for any county that is a proper county for the filing of a suit for bodily injury arising out of the accident, against the uninsured motorist, or any county specified in the policy or an endorsement added thereto as a proper county for arbitration or action thereon.

(Id. [italics added].) 2

The discovery methods provided in Title 4 of the Code of Civil Procedure (the Civil Discovery Act) are available to either party, both before and after the commencement of arbitration, and the Superior Court has jurisdiction to adjudicate discovery disputes. (§§ 11580.2, subds. (f) & (f)(2).)

Section 11580.2, subdivision (i) provides that:

No cause of action shall accrue to the insured under any policy or endorsement provision issued pursuant to this section unless one of the following actions have been taken within two years from the date of the accident:

(A) Suit for bodily injury has been filed against the uninsured motorist, in a court of competent jurisdiction.

(B) Agreement as to the amount due under the policy has been concluded.

(C) The insured has formally instituted arbitration proceedings by notifying the insurer in writing sent by certified mail, return receipt requested. Notice shall be sent to the insurer or to the agent for process designated by the insurer filed with the department.

(§ 11580.2, subd. (i).)

“Any demand or petition for arbitration shall contain a declaration, under penalty of perjury, stating whether (i) the insured has a workers’ compensation claim; (ii) the claim has proceeded to findings and award or settlement on all issues reasonably contemplated to be determined in that claim; and (iii) if not, what reasons amounting to good cause are grounds for the arbitration to proceed immediately.” (§ 11580.2, subd. (f).)

“On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the

controversy exists . . .” (Code Civ. Proc. § 1281.2.)

“[A]n insured’s cause of action against an insurance company to compel arbitration or uninsured motorist benefits does not accrue, and the statute of limitations does not begin to run, until the insurance company refuses to arbitrate.” (Allstate Ins. Co. v. Gonzalez (1995) 38 Cal.App.4th 783, 789 [quoting Spear v. Cal. State Auto. Assn. (1992) 2 Cal.4th 1035, 1043].)

IV. DISCUSSION

Petitioner moves for an order consolidating the arbitration proceedings involving Respondents and compelling Respondents to participate in one single arbitration addressing liability and damages arising from the motor vehicle accident.

A petition to compel arbitration of an uninsured/underinsured motorist claim on an automobile insurance policy is a petition to compel arbitration made pursuant to Code of Civil Procedure section 1281.2. (See Gordon v. G.R.O.U.P., Inc. (1996) 49 Cal.App.4th 998, 1005 [noting that arbitration of a claim on an uninsured motorist policy may be compelled to arbitration and citing Code of Civil Procedure section 1281.2].) Here, Petitioner was injured in a motor vehicle accident and made claims under insurance policies with Respondents that contain arbitration provisions. (Fiterz Decl., ¶ 2.) Petitioner attaches both policies with Respondents, showing the relevant arbitration clauses. (Fiterz Decl., ¶ 2; Exh. A.) Mobilitas contends it is not responsible for special damages and arbitration should not proceed until the U.S. Fire claim is fully resolved, while U.S. Fire contends it is not subject to workers’ compensation rules, but refused to proceed to arbitration. (Fiterz Decl., ¶ 3-4.) Petitioner is now in “procedural limbo” with Respondents each refusing to proceed with arbitration. (Fiterz Decl., ¶ 5.)

Petitioner attaches the declaration of his counsel in compliance with section 11580.2, subdivision (f). Petitioner’s counsel explains that consolidating the arbitration proceedings into one single arbitration and compelling Respondents to appear will promote judicial efficiency, avoid inconsistent rulings, and prevent undue delay and prejudice to Petitioner. (Fiterz Decl., ¶ 8.) Petitioner’s counsel further explains that Petitioner previously, timely demanded arbitration pursuant to the terms of the

agreements. (Fiterz Decl., ¶ 9.) Additionally, on April 16, 2026, Petitioner's counsel sent an email with Respondents' counsel asking if they would both agree to a consolidated arbitration, which they refused. (Fiterz Decl., ¶ 10.)

In opposition, Mobilitas argues arbitration is unwarranted because the two arbitrations involve separate legal frameworks, as Mobilitas coverage addresses tort liability and compensatory damages under general negligence principles and U.S. Fire's coverage addresses statutory entitlement to benefits under a certificate that provides coverage for app-based drivers. (Opp., 2:19-26.) Further, Mobilitas contends joint arbitration would improperly rewrite the parties' agreements into a three-party arbitration to which Mobilitas did not agree. (Opp., 3:1-3.)

In reply, Petitioner points to five other Los Angeles Superior Court cases where courts compelled arbitration under similar circumstances. (Reply, 5:15-27; 6:1-13.)

"A party to an arbitration agreement may petition the court to consolidate separate arbitration proceedings, and the court may order consolidation of separate arbitration proceedings when: (1) Separate arbitration agreements or proceedings exist between the same parties; or one party is a party to a separate arbitration agreement or proceeding with a third party; and (2) The disputes arise from the same transactions or series of related transactions; and (3) There is common issue or issues of law or fact creating the possibility of conflicting rulings by more than one arbitrator or panel of arbitrators." (Code Civ. Proc., § 1281.3.)

Here, the Court finds that the elements of Code of Civil Procedure section 1281.3 are met. First, Petitioner shows that he is a party to separate arbitration agreements with third parties, the Respondents. (Fiterz Decl., ¶ 2; Exh. A.) Second, the disputes each arise from the same motor vehicle accident, even if one pertains to occupational benefits and the other negligence principles. (Fiterz Decl., ¶ 2.) The existence of common factual determinations is important. *Garden Grove Community Church v. Pittsburgh-Des Moines Steel Co.* (1983) 140 Cal.App.3d 251, 251 [holding "it was error to refuse to consolidate separate arbitrations between the Church and each of several parties with whom it separately contracted for work on a common project where the disputes must necessarily be resolved upon common factual determination"].) As for the third element, Plaintiff argues "separate arbitrators could reach different conclusion regarding the nature and extent of

Petitioner's injuries, the reasonableness and necessity of medical treatment, causation, wage loss, special damages, offsets, credits, and the allocation of responsibility between the carriers." (Reply, 5:2-6.) The Court agrees. If each arbitrator in separate proceedings found different conclusions as to the issues Petitioner listed, conflicting rulings would exist. After determining whether Code of Civil Procedure section 1281.2, subdivision (c) applies, the Court may consider judicial economy and similar factors. (*Acquire II, Ltd. v. Colton Real Estate Group* (2013) 213 Cal.App.4th 959, 978; see also *Mercury Ins. Group v. Superior Court* (1998) 19 Cal.4th 332, 345 ["trial court has authority to consolidate a contractual arbitration proceeding between an insurer and an insured as to uninsured motorist coverage in the insured's pending action against third parties — that is, to join the insurer as a defendant as to uninsured motorist coverage issues — for all purposes, including trial, in order to avoid conflicting rulings on a common issue of law or fact"].) Here, the Court finds it would promote judicial efficiency if there is a single arbitration for both claims.

Accordingly, the Court grants Petitioner's motion.

V. CONCLUSION

The Court GRANTS Petitioner's motion to compel a single joint arbitration proceeding.

Moving Party is ordered to give notice.

DATED:

June 30, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

- If a party intends to submit on this

tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

- Unless all parties submit by email to this

tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

- If the parties neither submit nor appear at

hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated

statutory references are to the Insurance Code.